

25VECV00984 25VECV00984

County: los-angeles

Division: Civil Law and Motion

Department: 107

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Case Number: 25VECV00984 Hearing Date: June 26, 2026 Dept: 107

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Myra Preciado Garcia, et al.

Plaintiff,

v.

General Motors LLC

Defendant.

Case Number Department

25VECV00984

107

COURT'S [TENTATIVE]
ORDER RE:

Motion for Attorneys' Fees

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

(1) Grant attorneys' fees in the reduced sum of \$13,622.50; (2) Deny request for costs.

I.

BACKGROUND

On

June 8, 2023, Plaintiffs Myra Preciado Garcia and Maria Castaneda ("Plaintiffs") leased a new 2023 Cadillac CT5 (the "Vehicle"). (Complaint ¶¶ 8.) The Vehicle was defective. (Complaint ¶¶ 9.)

On

February 21, 2025, Plaintiffs filed a complaint against Defendants General Motors LLC ("Defendant") and Does 1 through 10, alleging causes of action for: (1) violation of Song-Beverly Act - breach of express warranty; (2) violation of Song-Beverly Act - breach of implied warranty; and (3) violation of the Song-Beverly Act section 1793.2, subdivision (b).

On

October 13, 2025, Plaintiffs filed a notice of settlement of entire case.

On

December 12, 2025, the court dismissed the complaint without prejudice pursuant to Code of Civil Procedure section 664.6. (12/12/25 Minute Order.)

On

April 9, 2026, Plaintiffs filed a motion for attorneys' fees (the "First Motion"). On May 22, 2026, Plaintiffs withdrew the First Motion. That same day, Plaintiffs filed another motion for attorneys' fees (the "Motion"). As of June 23, 2026, no opposition has been filed.

II.

LEGAL

STANDARD

California

Civil Code section 1794, subdivision (d) states:

If the buyer

prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

"The plain

wording of the statute requires the trial court to base the fee award upon actual time expended on the case, as long as such fees are reasonably incurred – both from the standpoint of time spent and the amount charged." (*Robertson v. Fleetwood Travel Trailers of California, Inc.* ("Robertson") (2006) 144 Cal.App.4th 785, 817, original italics.) The "prevailing party has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and were reasonable in amount." (*Id.* at pp. 817-818.)

"The amount of an attorney fee to be awarded is a matter within the sound discretion of the trial court." (*Id.* at p. 822.)

"[T]he lodestar

adjustment method is the prevailing rule for statutory attorney fee awards to be applied in the absence of clear legislative intent to the contrary[.]" (*Robertson*, supra, 144 Cal.App.4th at p. 818.) The lodestar adjustment method "requires the trial court to first determine a touchstone or lodestar figure based on a careful compilation of the actual time spent and reasonable hourly compensation for each attorney. [Citation] The touchstone figure may then be augmented or diminished by taking various relevant factors into account, including (1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and (3) the contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award." (*Id.* at p. 819.) However, a trial court is "not required to apply a multiplier." (*Id.* at p. 822, original italics.)

III.

DISCUSSION

Plaintiffs

move for an order awarding Plaintiffs attorneys' fees and costs in the sum of \$28,658.82. (Motion p. 2.) This sum reflects \$17,685.00 in attorneys' fees, a

0.5 multiplier enhancement increasing the fees by \$8,842.50, and \$2,131.32 in costs and expenses. (Motion p. 2.)

Hourly

Rates:

Counsel

Sepehr Daghighian billed 4.90 hours of work on this matter and expects to bill another 7.50 hours of work on this matter, at \$625.00 per hour. (Daghighian Declaration ¶ 7.) Counsel Michael H. Rosenstein billed 1.90 hours of work on this matter, at \$700.00 per hour. ((Daghighian Declaration ¶ 8.) Counsel Brian T. Shippen-Murray billed 14.50 hours of work on this matter, at \$550.00 per hour. (Daghighian Declaration ¶ 9.) Counsel Miguel A. Ortiz billed 1.20 hours of work on this matter, at \$525.00 per hour. (Daghighian Declaration ¶ 10.)

Defendant

filed no opposition challenging these hourly rates. Daghighian submits a declaration discussing counsels relevant background and experience. (Daghighian Declaration ¶¶ 4-10.) Daghighian states that in establishing the firm's rates, they considered the United States Consumer Law Attorney Fee Survey published in 2019 that reflected rates from 2017 to 2018, and “determined that the rates charged by the attorneys were commensurate with the hourly rates charged by other attorneys with comparable experience in consumer rights law.” (Daghighian Declaration ¶ 12.) Daghighian also considered the 2021 Wolters Kluwer Real Rate Report in setting the firm's rates. (Daghighian Declaration ¶ 13.)

The

court finds the hourly rates billed in this matter are reasonable. (See *Goglin v. BMW of North America, LLC* (2016) 4 Cal.App.5th 462, 464, 473-474 [concluding a trial court did not abuse its discretion in finding a \$575 hourly rate was appropriate in a Song-Beverly Consumer Warranty Act action.])

Time

Billed:

Plaintiffs'

counsels billed 22.50 hours on this matter and expect to bill another 7.50 hours on reviewing the opposition, preparing a reply, and preparing for and appearing at the hearing on the Motion. (Daghighian Declaration ¶¶ 7-10; Ex. A pdf p. 17.)

Defendant

filed no opposition and Plaintiffs filed no reply. Thus, fees for reviewing the opposition and preparing a reply are not warranted.

Further,

the Motion is unopposed, so court finds that the requested 2.50 hours of anticipated fees for preparing for and appearing at the hearing is excessive. (Daghighian Declaration; Ex. A pdf p. 17.) The court will reduce the requested hours to 1.0 hour for preparing for and appearing at the hearing.

These

two reductions reduce the requested fees by \$4,062.50. (Daghighian Declaration Ex. A pdf p. 17.)

This

matter was pending for about eight months before Plaintiffs filed the notice of settlement of entire case. The court has reviewed Plaintiffs' counsels' billing records and finds that the remaining 22.50 hours of billed fees are reasonable for this matter. (Daghighian Declaration Ex. A pdf pp. 12-17.)

Lodestar

Multiplier:

Plaintiffs

request a 0.5 lodestar multiplier. (Motion p. 2)

The court understands

that litigating Song-Beverly actions requires technical expertise. But "a trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable." (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1139.) Here, Plaintiffs' counsels displayed the skill, proficiency, and technical expertise commensurate with counsels' experience and specialty. Nothing before the court indicates Plaintiffs' counsels' representation exceeded that which would have been provided by other attorneys of comparable skill and experience billing at counsels' rates.

Accordingly, the court
denies Plaintiffs' request for an enhancement.

Costs:

Plaintiffs request
costs and expenses in the sum of \$2,131.32. (Motion p. 2.) California Rules of
Court, rule 3.1700(a)(1) states:

A prevailing party who
claims costs must serve and file a memorandum of costs within 15 days after the
date of service of the notice of entry of judgment or dismissal by the clerk
under Code of Civil Procedure section 664.5 or the date of service of
written notice of entry of judgment or dismissal, or within 180 days after
entry of judgment, whichever is first. The memorandum of costs must be verified
by a statement of the party, attorney, or agent that to the best of his or her
knowledge the items of cost are correct and were necessarily incurred in the
case.

Plaintiffs filed no
memorandum of costs with the court. Thus, the request for costs is denied.

IV.

CONCLUSION

For the foregoing
reasons, the Motion is granted in the reduced sum of \$13,622.50, reflecting
22.50 hours of billed fees and 1.0 hour of anticipated fees for preparing for
and appearing at the hearing on the Motion. Defendant is ordered to pay
Plaintiffs' counsel \$13,622.50 within thirty (30) days of this order.
Plaintiffs' request for costs and expenses in the sum of \$2,131.32 is denied.

Dated: 6/26/2026 _____ Hon. Eric Harmon

Judge of the Superior
Court